Australian Government
Department of Home Affairs

2 April 2026

Vida Reid
96 Amethyst Crescent
Mount Richon WA 6112

Sent via email: vida_reid@yahoo.com

In reply please quote:
Client Name: Vida Reid
Date of Birth: 11 January 1987
Client ID: 17111227309
FOI Request: FA 24/10/01764
File Number: FA24/10/01764

Dear Vida Reid

Access Decision - Freedom of Information (FOI) request

This letter refers to an access request received by the Department of Home Affairs ('the Department') under the *Freedom of Information Act 1982* (the FOI Act) on 25 October 2024, seeking access to:

> *I am writing to request access to documents under the Freedom of Information Act 1982 concerning the border force stop of myself Vida Reid and my family that took place on 25th September 2024.*
>
> ***Specifically, I request the following information:***
>
> 1. *. All records, reports, or notes held by the Australian Border Force (ABF) or related departments regarding the stop of myself Vida Reid, My husband Simon Reid and our 2 children at Perth airport on 25th September 2024 including:*
> 2. *Reasons for the stop*
> 3. *Internal communications and decision-making processes*
> 4. *Documents detailing any actions taken during the stop (e.g., searches, questioning, detentions)*
> 5. *Any information shared with other agencies related to this stop*
> 6. *Correspondence or communications between ABF and other government departments or agencies (e.g., NDIS Commission, Australian Federal Police) regarding Vida Reid and her family, specifically in relation to the stop on 14th October 2024.*
> 7. *Any legal or policy documents that were used as the basis for the border stop, including any policies guiding border stops involving family members in similar circumstances.*

Timeframe for processing your request
The FOI Act provides a statutory period for processing your request of 30 calendar days, unless an extension of time is agreed to, or provided for under a provision of the FOI Act.

According to section 15 of the FOI Act, the statutory timeframe for the processing of your request expired on 24 November 2024. The Department apologises for the delay in processing your request.

Authority to make decision
I am an officer authorised under section 23 of the FOI Act to make decisions in respect of requests to access documents or to amend or annotate Departmental records.

Information considered
In reaching my decision, I have considered the following:

- the *Freedom of Information Act 1982*;
- the Australian Information Commissioner's FOI guidelines relating to access to documents held by government;
- the terms of your request and
- Departmental documents, (identified below).

Decision
The Department has identified one (1) file that falls within the scope of your request. This file was in the possession of the Department on 25 October 2024, when your request was received.

My decision is to exempt in part the documents in the possession of the Department which fall within the scope of your request. The reasons for my decision are set out in **Attachment A**.

Review rights

Internal review
You do not have the right to seek an internal review of this decision. This is because section 54E(b) of the FOI Act provides that, when an agency is deemed to have refused an FOI request under section 15AC of the FOI Act, the applicant does not have the right to seek an internal review of the deemed decision.

The Department was deemed to have refused your request under section 15AC of the FOI Act because it did not make this decision within the statutory timeframes for the request.

While the Department has now made a substantive decision on your request, section 15AC of the FOI Act continues to apply to your request, which means that any request you make for internal review will be invalid.

Information Commissioner review
You can instead request the Australian Information Commissioner to review this decision. If you want to request an Information Commissioner review, you must make your request to the Office of the Australian Information Commissioner (OAIC) within 60 days of being notified of this decision.

You can apply for an Information Commissioner review at: Information Commissioner review application form on the OAIC website.

If you have already applied for an Information Commissioner review, there is no need to make a new review request. The OAIC will contact you shortly to give you an opportunity to advise whether you wish the review to continue, and to provide your reasons for continuing the review.

You can find more information about Information Commissioner reviews on the OAIC website.

Making a complaint
You may make a complaint to the Australian Information Commissioner if you have concerns about how the Department has handled your request under the FOI Act. This is a separate process to the process of requesting a review of the decision as indicated above.

You can make an FOI complaint to the Office of the Australian Information Commissioner (OAIC) at: FOI Complaint Form on the OAIC website.

Contacting the FOI Section
If you wish to discuss this matter, I can be contacted using the details provided below.

Contacting the Department
You can contact us with an enquiry in a number of ways including by email, through our website; by telephone, through our Service Centres or offices around the world, or in person. In Australia you can call 13 18 81 between 9:00 am and 5:00 pm Monday to Friday. Details on submitting a webform, or contacting our offices outside Australia are available on our website at www.homeaffairs.gov.au.

Yours sincerely

Position no: 60219644
Decision Maker - Freedom of Information
Privacy, FOI and Records Management Branch I Legal Group
Department of Home Affairs
Email: request.personal.information@homeaffairs.gov.au

Attachments

- Attachment A – Decision Record
- Documents released to you under the FOI Act

Australian Government
Department of Home Affairs

Attachment A – Decision Record

In reply please quote:
Client Name: Vida Reid
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Scope of Request

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Departmental records within scope

No.	Description	Reference	No. of folios
1.	Documents in Scope within ADF2024/261542	ADD2026/892999	132

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- the Australian Information Commissioner's FOI guidelines relating to access to documents held by government;
- the terms of your request and
- Departmental documents, (identified above).

Reasons for decision
I have considered the documents within the scope of your request and applied exemptions in part as detailed.

***22 Access to edited copies with exempt or irrelevant matter deleted* (extract)**

(1) *This section applies if:*
(a) an agency or Minister decides:
(i) to refuse to give access to an exempt document; or
(ii) that to give access to a document would disclose information that would reasonably be regarded as irrelevant to the request for access; and
*(a) it is possible for the agency or Minister to prepare a copy (an **edited copy**) of the document, modified by deletions, ensuring that:*
(i) access to the edited copy would be required to be given under section 11A (access to documents on request); and
(ii) the edited copy would not disclose any information that would reasonably be regarded as irrelevant to the request; and
(b) it is reasonably practicable for the agency or Minister to prepare the edited copy, having regard to:
(i) the nature and extent of the modification; and
(ii) the resources available to modify the document; and
(c) it is not apparent (from the request or from consultation with the applicant) that the applicant would decline access to the edited copy.

Section 22(2) of the FOI Act provides that, where an agency reaches the view that a document contains exempt information or material that is irrelevant to the request and it is possible for the agency to prepare an edited copy of the document with the irrelevant or exempt material deleted, then the agency must prepare such a copy.

This edited copy must be provided to the applicant. Further, the decision maker must advise the applicant in writing that the edited copy of the document has been prepared and of the reason(s) for each of the deletions in the document (s.22(3) of the FOI Act).

Exempt material is deleted pursuant to s.22(1)(a)(i) and irrelevant material is deleted pursuant to s.22(1)(a)(ii) of the FOI Act.

In your acknowledgement letter, you were advised of the Department's policy to consider irrelevant to the scope of your request the personal details of staff. This includes their names, direct email addresses and also the mobile and direct work telephone numbers of these staff. This material has therefore been removed under s. 22(1)(a)(ii) of the FOI Act from the documents that form the scope of your request.

You will see these exemptions in the documents released to you as they will be clearly identified with 's. 22(1)(a)(ii)'.

37 Documents affecting enforcement of law and protection of public safety

(1) A document is an exempt document if its disclosure under this Act would, or could reasonably be expected to:
(a) prejudice the conduct of an investigation of a breach, or possible breach, of the law, or a failure, or possible failure, to comply with a law relating to taxation or prejudice the enforcement or proper administration of the law in a particular instance;

(b) disclose, or enable a person to ascertain, the existence or identity of a confidential source of information, or the non-existence of a confidential source of information, in relation to the enforcement or administration of the law; or
(c) endanger the life or physical safety of any person.

(2) A document is an exempt document if its disclosure under this Act would, or could reasonably be expected to:
(a) prejudice the fair trial of a person or the impartial adjudication of a particular case;
(b) disclose lawful methods or procedures for preventing, detecting, investigating, or dealing with matters arising out of, breaches or evasions of the law the disclosure of which would, or would be reasonably likely to, prejudice the effectiveness of those methods or procedures; or
(c) prejudice the maintenance or enforcement of lawful methods for the protection of public safety.

The information which I have exempted under section 37(2)(b) is information which, if disclosed, would reveal lawful methods or procedures used by the Department to investigate complaints and would be reasonably likely to prejudice the effectiveness of those methods or procedures.

I believe disclosure of this information would reasonably compromise the Department's investigation strategy by revealing the Department's methods of investigating issues and in so doing would compromise the Department's ability to successfully utilise such methods or procedures in the future.

It is important that these processes are kept confidential to prevent persons from circumventing these procedures, or from providing false information during these investigations. Release of this information would prejudice the effectiveness of the referral process, and the attainment of true and correct information.

42 Documents subject to legal professional privilege

(1) A document is an exempt document if it is of such a nature that it would be privileged from production in legal proceedings on the ground of legal professional privilege.

(2) A document is not an exempt document because of subsection (1) if the person entitled to claim legal professional privilege in relation to the production of the document in legal proceedings waives that claim.

(3) A document is not an exempt document under subsection (1) by reason only that:
(a) the document contains information that would (apart from this subsection) cause the document to be exempt under subsection (1); and
(b) the information is operational information of an agency.

*Note: For **operational information**, see section 8A.*

The documents identified in the schedule of documents as being exempt under section 42(1) of the FOI Act are documents that contain information subject to legal professional privilege.

For a document to be exempt under section 42(1) I must be satisfied that the documents would be privileged from production in legal proceedings on the ground of legal professional privilege and that real harm would result from disclosure of this information.

A document is privileged on the ground of legal professional privilege if, amongst other things, it is a confidential communication between a person and his or her solicitor or barrister brought into existence for the dominant purpose of seeking or giving advice or for the purpose of providing legal services in connection with proceedings.

The documents considered exempt under section 42(1) were raised for the dominant purposes of giving or seeking legal advice, and are confidential communication between

departmental legal officers and the client in which information was conveyed or requested for the purpose of legal advice.

I have considered these facts in conjunction with section 42(1) of the FOI Act. The departmental legal adviser in response to a request prepared the documents concerned by the Department for legal advice. The Department, as the client, does not agree to waive its privilege in relation to the document because of the effect this could have on the conduct of its legal affairs.

I am satisfied that at this time the Department has not waived its claim to legal professional privilege in relation to this document and that the document is not solely operational information of the agency.

Consequently, having regard to all of these matters, I have decided to refuse access to the material indicated in the Schedule, in whole, under section 42(1) of the FOI Act.

47D Public interest conditional exemptions—financial or property interests of the Commonwealth or Norfolk Island

A document is conditionally exempt if its disclosure under this Act would have a substantial adverse effect on the financial or property interests of the Commonwealth, of Norfolk Island or of an agency.

Note: Access must generally be given to a conditionally exempt document unless it would be contrary to the public interest (see section 11A).

The documents I have exempted under section 47D relate to the commercial activities of the Department. The release of these documents would have a substantial adverse effect on the financial or property interests of the Commonwealth.

Having formed the view that the release of the documents would have a substantial adverse effect on the financial or property interests of the Commonwealth I then considered whether release of the documents would be contrary to the public interest.

I considered the following factors in favour of disclosure:

- There is a general public interest in making information held by the Government accessible to the public;
- A person or the general public is entitled to have access to documents containing decisions which affect them. Disclosure may reveal the reasons for decision;
- Inform debate on a matter of public importance; and
- The need for openness and accountability of the Department's operations.

On the other hand I considered the following in favour of non-disclosure:

- Prejudice the competitive commercial activities of the Department;
- Provide an unfair advantage in relation to lawful tender process;
- Affect the Department's ability to use public money effectively.

The Department's responsibility to use public money lawfully and effectively has been given the most weight. I am satisfied therefore the release would be contrary to the public interest and the documents are exempt under section 47D of the FOI Act.

47E Public interest conditional exemptions—certain operations of agencies

A document is conditionally exempt if its disclosure under this Act would, or could reasonably be expected to, do any of the following:

(a) prejudice the effectiveness of procedures or methods for the conduct of tests, examinations or audits by an agency;

(b) prejudice the attainment of the objects of particular tests, examinations or audits conducted or to be conducted by an agency;
(c) have a substantial adverse effect on the management or assessment of personnel by the Commonwealth or by an agency;
(d) have a substantial adverse effect on the proper and efficient conduct of the operations of an agency.

Note: Access must generally be given to a conditionally exempt document unless it would be contrary to the public interest (see section 11A).

For a document to be exempt under section 47E(d), I must be satisfied that there is a reasonable expectation that its disclosure will result in a substantial adverse effect on the Department's operations and that there is no overriding public interest in favour of disclosure.

Having formed this view I then considered whether release of the documents would be contrary to the public interest.

I considered the following factors in favour of disclosure:

- There is a general public interest in making information held by the Government accessible to the public;
- A person or the general public is entitled to have access to documents containing decisions which affect them. Disclosure may reveal the reasons for decision;
- Inform debate on a matter of public importance; and
- The need for openness and accountability of the Department's operations.
- The extent to which the information is known by the public.

On the other hand I considered the following in favour of non-disclosure:

- An unfair advantage could be gained by knowledge of the operations of the Department;
- Reveal covert operating procedures, the release of which would require the Department to change the way it operates.

Releasing information about the way the Department operates may enable applicants to circumvent certain processes in the future. This would result in the Department having to continually change its processes at a cost to the Department. I have given this the most weight. I therefore believe that releasing this information would be contrary to the public interest.

Position no: 60219644
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